

		Proc., §871.26, subd. (e)), for tasks associated with a routine case management conference, and anticipated time in connection with the instant motion, which appear somewhat excessive. (See <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [court’s broad authority to determine reasonable fees]; <i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 635, FN 21 [clerical tasks should generally be considered overhead and included in counsel’s hourly rate]; <i>Save Our Uniquely Rural Community Environment v. County of San Bernardino</i> (2015) 235 Cal.App.4th 1179, 1187 [trial court did not abuse discretion in reducing fees billed at partner rates for “researching and calendaring all deadlines”].) Otherwise, after review of moving parties’ billing records (Ex. A to motion), the court finds the remaining billing entries and time claimed to be reasonably and necessarily incurred. The motion is DENIED as to costs. Moving party has already filed a Memorandum of Costs (Ex. B to motion; ROA 49), and no motion to tax was filed. (Cal. Rules of Court, rule 3.1700, subd. (b)(1) [motion to tax costs must be filed within 15 days after service of the cost memorandum].) Moving party provides no evidence of costs incurred other than those included in the Memorandum of Costs. (See <i>Smalley v. Subaru of America, Inc.</i> (2022) 87 Cal.App.5th 450, 457 [“In a claim under the Song-Beverly Act ... for purposes of that statute, expenses encompasses out-of-pocket expenses beyond the costs identified in Code of Civil Procedure section 1033.5;” other internal citations omitted].) Since plaintiff’s costs are already recoverable under the unchallenged Memorandum of Costs, it would be a double recovery to award the same costs in connection with the instant motion. <i>Order to Show Cause re: Dismissal on Settled Case scheduled for January 29, 2027 at 8:30 a.m. in Department C44.</i> The court expects a dismissal of the entire case, forthwith, since the issue of attorney’s fees has now been resolved. (See Declaration of Anthony P. Greco [ROA 57].) Moving party shall give notice.
8	Whitewolf vs. Beachwalk Homeowners Association 2023-01346511	Motion for Determination of Good Faith Settlement Defendant USAA Casualty Insurance Company’s Motion for Determination of Good Faith Settlement is GRANTED. Settling Defendant has adequately demonstrated that the settlement amount is within “the ballpark” of their potential proportionate share of

	liability for Plaintiff's total damages. (See <i>Tech-Bilt, Inc. v. Woodward-Clyde & Assoc.</i> (1985) 38 Cal. 3d 488, 499.) As an initial matter, it appears that Plaintiff Whitewolf has agreed to a settlement of her claims against Defendant USAA. (See ROA 286 [Bavilsky Decl.] at ¶3, Exh. A [copy of executed settlement and release between Plaintiff and USAA].) The Court has reviewed the evidence submitted in support of the Motion, and has assessed this evidence in light of the factors identified in <i>Tech-Bilt</i>. The Court finds there is substantial evidence supporting the good faith basis of this settlement. Furthermore, the motion is unopposed, and no other party has demonstrated any basis to question that this settlement is genuine. However, the Court does note that the Motion was not served with an adequate period of notice. If Defendant Beachwalk objects to the good faith determination, they may appear at the hearing and raise an objection. Moving Defendant shall provide notice of this ruling.
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